

Tentative Rulings for July 20, 2026 Department 4

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 533 0910**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2305148	HAUGEN vs AMERICAN HONDA MOTOR CO., INC., A CALIFORNIA CORPORATION	MOTION TO TAX COSTS

Tentative Ruling:

DENY

A verified memorandum of costs constitutes *prima facie* evidence that the requested costs and fees are reasonable. (*Adams v. Ford Motor Co.* (2011) 199 Cal.App.4th 1475, 1484.) Plaintiffs do not have to affirmatively offer proof or justification for each item of costs. Defendant does not meet its burden to show that the requested costs were not reasonably necessary to the action. (*Ladas v. California State Automotive Association* (1993) 19 Cal.App.4th 761, 773-774.) The deposition costs and expert witness fees are also recoverable because under Civ. Code § 1794(d), the prevailing buyer is entitled to fees and expenses, including some fees and expenses not included in the 'detailed statutory definition of "costs" 'set forth in CCP § 1033.5. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.4th 24, 42.)

2.

CASE #	CASE NAME	HEARING NAME
CVRI2403061	ALVAREZ vs FESTIVAL FUN PARKS, LLC	MOTION TO VACATE DISMISSAL

Tentative Ruling:

GRANT

Dismissal of May 21, 2026, is set aside.

Matter is set for an Order to Show Cause Why this matter should not be dismissed following settlement on: October 21, 2026, at 8:30am, D-4.

Plaintiff to obtain a minor's compromise through the probate department before that date.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2505794	COFFELT vs STINTSON	MOTION FOR LEAVE TO FILE SUPPLEMENTAL COMPLAINT

Tentative Ruling:

GRANT

4.

CASE #	CASE NAME	HEARING NAME
CVRI2601238	HUNTER vs GAUSE	MOTION TO STRIKE OR, IN THE ALTERNATIVE, TO TAX COSTS

Tentative Ruling:

DENY

A prevailing party is entitled as a matter of right to recover costs in any action or proceeding. (CCP § 1032(b)) The trial court determines, in its discretion, the prevailing party by comparing the relief sought with that obtained. (*Friends of Spring Street v. Nevada City* (2019) 33 Cal.App.5th 1092.) Here, since changes were needed to comply with the Election Code, and although the changes were minimal, Petitioner is the prevailing party and is entitled to appropriate costs. The costs requested by Petitioner were reasonably necessary to the conduct of the litigation and are therefore proper and allowable. (CCP § 1033.5(c)(2).)

5.

CASE #	CASE NAME	HEARING NAME
CVRI2601238	HUNTER vs GAUSE	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

GRANT Petitioner's motion for attorney's fees under CCP § 1021.5 in the reduced, reasonable sum of \$21,835.

CCP § 1021.5 allows the court to award attorneys' fees to a party in an action that results in the enforcement of an important right affecting a public interest. The court finds that Petitioner here has met the test set forth in *Mandicino v. Maggard* (1989) 210 Cal.App.3d 1413, in vindicating an important right so as to justify an attorney fee award.

The fees sought, however, are excessive. Petitioner's counsel seeks an hourly rate of \$695 per hour. The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, Inc. Drexler* (1999) 72 Cal.App.4th 693.) The court finds that the prevailing rate in the Riverside area for this type of work is \$550 per hour. In addition, the court agrees with Respondent that the total hours spent on this matter (54 hours) is excessive. The court disallows 6.8 hours for work that is secretarial in nature, was unnecessary, or involved the filing or processing of documents. The 5.3 hours spent on the Reply brief (3/25/26) will be reduced by 2.1 hours. The time expended on the motion for attorney's fees and opposition to motion to tax costs (20.1 hours) is also excessive and will be reduced by 5.4 hours. The court awards Petitioner \$21,835 in attorney's fees. (54hrs – 6.8hrs – 2.1hrs – 5.4hrs = 39.7hrs @ \$550/hr.). No multiplier is warranted.